

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO. 4976 OF 2014

In the matter of:

An application under Section 115(4) of the Code of Civil Procedure.

And

Md. Abul Kalam (Masud)
... Petitioner

-Versus-

Md. Khalilur Rahman and others
... Opposite parties

None appears

.... For the petitioner.

Mr. Md. Abul Kashem Newaz, Advocate

.... For the opposite parties.

Heard and Judgment on 01.09.2024.

This Rule was issued calling upon the opposite party No.1 to show cause as to why the impugned judgment and order dated 14.08.2014 passed by the learned Additional District Judge, 1st Court, Noagaon in Civil Revision No.71 of 2013 allowing the said revision and reversing the order dated 18.08.2013 passed by the learned Senior Assistant Judge, Noagaon Sadar, Noagaon in Other class Suit No.164 of 2012 should not be set aside and or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioner as plaintiff instituted above suit for a decree of perpetual injunction for 45 decimal land as

described in the schedule to the plaint alleging that the plaintiff is the rightful owner and possessor of above land but the defendants are threatening them with forcible dispossession.

In above suit the defendant entered appearance and 15.09.2013 was fixed for submitting written statement and above defendant submitted a written statement. But the learned Senior Assistant Judge rejected above written statement for non submission of relevant documents.

Being aggrieved by and dissatisfied with above judgment and order of the trial the defendant preferred Civil Revision No.71 of 2013 to the District Judge, Noagaon which was heard by the learned Additional District Judge who allowed revision set aside the impugned judgment and order passed by the trial Court and directed the trial Court to accept the written statement alongwith relevant documents of the defendants.

Being aggrieved by and dissatisfied with above judgment and order of the Court of appeal below above plaintiff as petitioner moved to this Court and obtained this Rule and leave is granted.

No one appears on behalf of the petitioner at the time of hearing of this Rule.

Mr. Abdul Kader Newaz, learned Advocate for the opposite parties submits the defendants submitted written statement on the date fixed for submission of the written statement. But the learned Senior Assistant Judge committed serious illegality in rejecting above written statement for alleged non submissions of document which was unlawful and the learned Judge of the Court of revision below rightly appreciated the facts and relevant laws and allowed above revision and set aside the unlawful order of the trial Court which calls for no interference.

I have considered the submissions of the learned Advocate for the opposite parties and carefully examined all materials on record.

It turns out from the record that on 15.03.2013 above suit was fixed for submission of the written statement and defendant No.1 submitted a written statement. But the learned Senior Assistant rejected above written statement for alleged non submission of documents without assigning any reason. The learned Senior Assistant Judge did not mention which documents were not produced at the time of submission of written statement.

In a suit for permanent injunction a defendant can enter appearance and deny the claims of the plaintiff and if the defendant did not produce any relevant document he shall suffer the consequence of

above omission at the trial. The learned Senior Assistant Judge committed serious illegality in rejecting the written statement of the defendants and the learned Judge of the Court of revision below on correct appreciation of materials on record rightly set aside above erroneous order which calls for no interference.

In above view of the materials on record I am unable to find any substance in this application under 115(1) of the Code of Civil Procedure and the Rule issued in this connection is liable to be discharged.

In the result, the Rule is hereby discharged. The order of stay granted at the time of issuance of the Rule is hereby recalled and vacated.

However, there is no order as to costs.

MD. MASUDUR RAHMAN
BENCH OFFICER